PRIVILEGED & CONFIDENTIAL — ATTORNEY WORK PRODUCT

MEMORANDUM
TO: File — Bayfront Steel & Supply (Berth 7 / Port Verano)
FROM: Margaret E. Linwood, Esq.
DATE: April 2, 2026
RE: Lien vs. Section 255.05 bond on a public port project

ISSUE. May Bayfront enforce its recorded Chapter 713 Claim of Lien against the Berth 7 parcel, or must it instead recover against the Section 255.05 payment bond, where the parcel is owned by the Port Verano Authority, a public port authority?

SHORT ANSWER. The lien almost certainly cannot attach. Florida construction liens under Chapter 713 do not attach to public or sovereign property; for improvements to public projects the lienor's remedy is a claim against the statutory payment bond under Section 255.05. See Deen v. Tampa Port Authority. Our primary track should be the 255.05 bond (Bond No. SUR-7741-FL, Gulfstream Surety), with the recorded lien preserved only as a precaution.

DISCUSSION. (1) Public property is generally immune from construction liens; the Legislature substituted the public-project payment bond as the materialman's security. (2) Construction-lien and bond-claim rights are statutory and require strict compliance — timely Notice to Owner (served December 30, 2025) and timely notice of nonpayment must be confirmed. (3) The Claim of Lien was recorded March 11, 2026 (O.R. Book 28714, Page 1902); any action to enforce must be commenced within one year of recording.

DAMAGES NOTE. Plead the balance supported by the draw ledger — $163,815.00. Do NOT repeat the $182,340.00 figure used in the March 24, 2026 demand letter; that number appears to double-count the disputed $18,525.00 Lot 4 back-charge.

RECOMMENDATION. Pursue the 255.05 bond claim; confirm the bond was properly furnished and recorded with the Authority before relying on it.